

UPSC GS-II POLITY

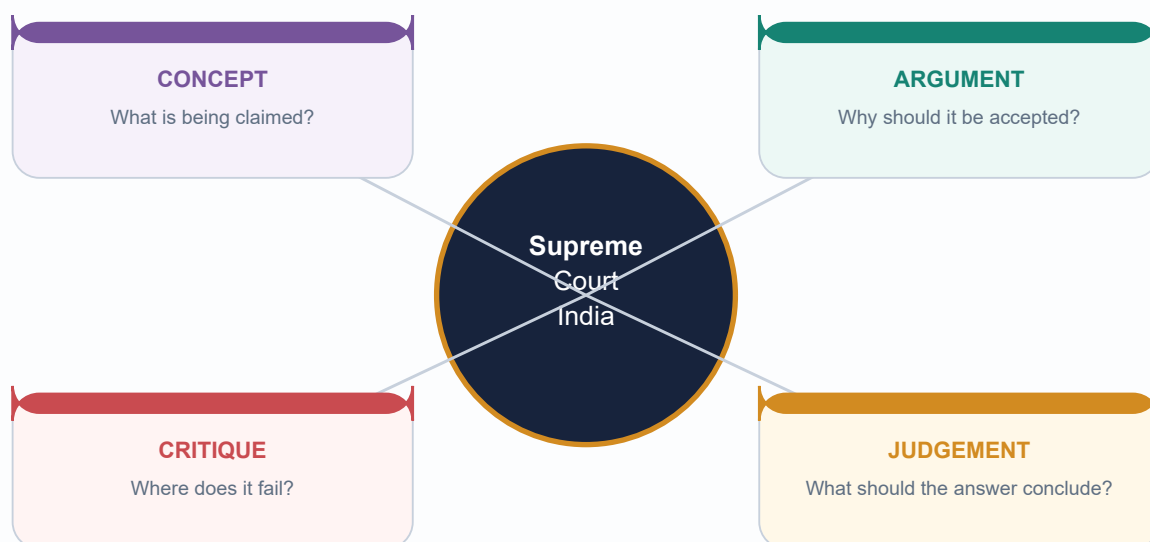
The Supreme Court of India

Integrated Basic + Advanced Course

12 deep-learning modules | Articles 124-147, Judicial Review, Activism and PIL

Case-law timelines, jurisdiction maps, comparisons, UPSC traps and Mains frameworks

Prepared from the verified Polity knowledge base (Laxmikant Ch. 26-29) and the completed guided session



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

1. Organisation and Historical Evolution of the Judiciary

GS-II Polity -
Judiciary

NEWS TRIGGER

Debates on judicial reform and case pendency regularly invoke the constitutional design of a single, integrated judiciary rather than a divided federal-state court system.

INTRO & ORIGIN

India adopted an integrated, single judiciary from the Government of India Act, 1935, with the Supreme Court at the apex, High Courts below it, and subordinate courts beneath them, enforcing both Central and state laws.

This is a deliberate contrast with the United States, which runs separate federal and state court systems. The Supreme Court of India was inaugurated on 28 January 1950, succeeding the Federal Court of 1937 and replacing the British Privy Council as the highest court of appeal.

TIMELINE

1935 — Government of India Act establishes the model of an integrated judiciary.

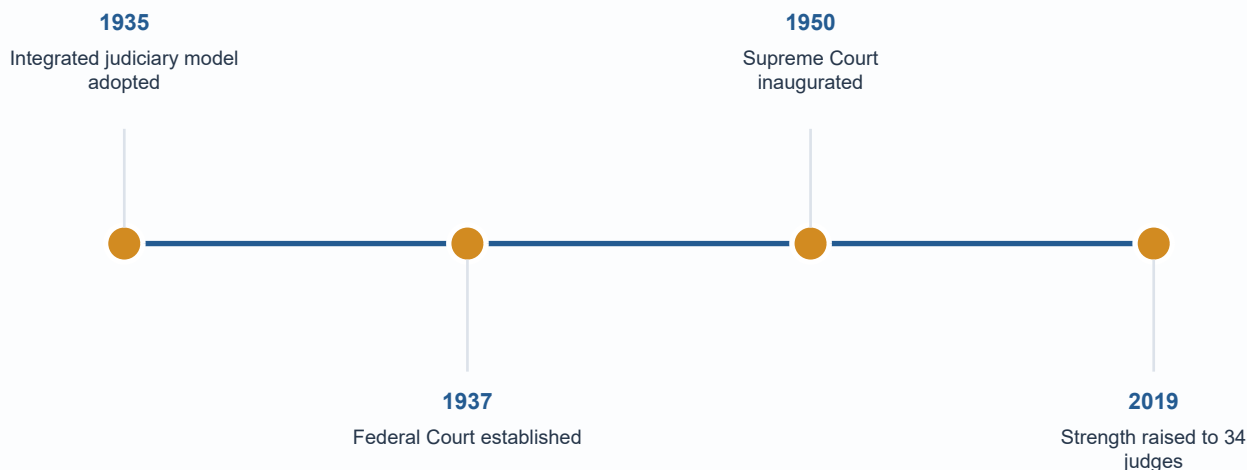
1937 — Federal Court is established as the pre-independence apex court.

1950 — Supreme Court of India is inaugurated on 28 January, replacing the Privy Council.

1949 — Original sanctioned strength is fixed at eight judges.

2019 — Supreme Court (Number of Judges) Amendment Act raises strength from 31 to 34.

FROM FEDERAL COURT TO A 34-JUDGE SUPREME COURT



KEY DATA

Feature	Detail
Constitutional basis	Articles 124-147, Part V
Inaugurated	28 January 1950
Present strength	34 (1 Chief Justice of India + 33 judges)
Original strength (1949)	8 judges
Judiciary type	Integrated / single judiciary, unlike the USA's double system
Retirement age	65 years (High Court judge retires at 62)

STATIC THEORY

- An integrated judiciary means a single hierarchy of courts enforces both Union and state laws, avoiding the jurisdictional overlap seen in dual court systems.
- The Federal Court of 1937, though limited in jurisdiction, was the direct institutional ancestor of the Supreme Court.
- Replacing the Privy Council in 1950 ended external appellate authority over Indian courts, completing judicial sovereignty alongside political independence.
- Strength has grown from eight judges in 1949 to thirty-four in 2019, reflecting rising caseloads and case pendency.

MEMORY HOOK

1935 DESIGN | 1937 FEDERAL COURT | 1950 SUPREME COURT | 2019 STRENGTH TO 34

MUST-KNOW FACTS

1. The Supreme Court is governed by Articles 124 to 147 in Part V of the Constitution.
2. It was inaugurated on 28 January 1950, one day before Republic Day is sometimes mistakenly assumed, but a day after 26 January was already used to mark the Constitution's commencement.
3. The Supreme Court replaced the British Privy Council as the final court of appeal.
4. Present strength stands at thirty-four - one Chief Justice of India plus thirty-three judges.

UPSC TRAPS

WRONG: India follows a double judiciary system like the United States.

CORRECT: India follows a single, integrated judiciary enforcing both Central and state laws.

WRONG: The Supreme Court was inaugurated on 26 January 1950.

CORRECT: It was inaugurated on 28 January 1950, two days after the Constitution commenced.

MAINS ANGLE

Use the integrated-judiciary design to explain how India avoids the jurisdictional fragmentation that can arise in federal systems with separate state and federal courts.

STUDY LINK

High Court -> Integrated Judiciary | Federal System -> Judicial Unity

HIGH

2. Appointment of Judges: Constitutional Text and Practice

GS-II Polity -
Judicial
Appointments

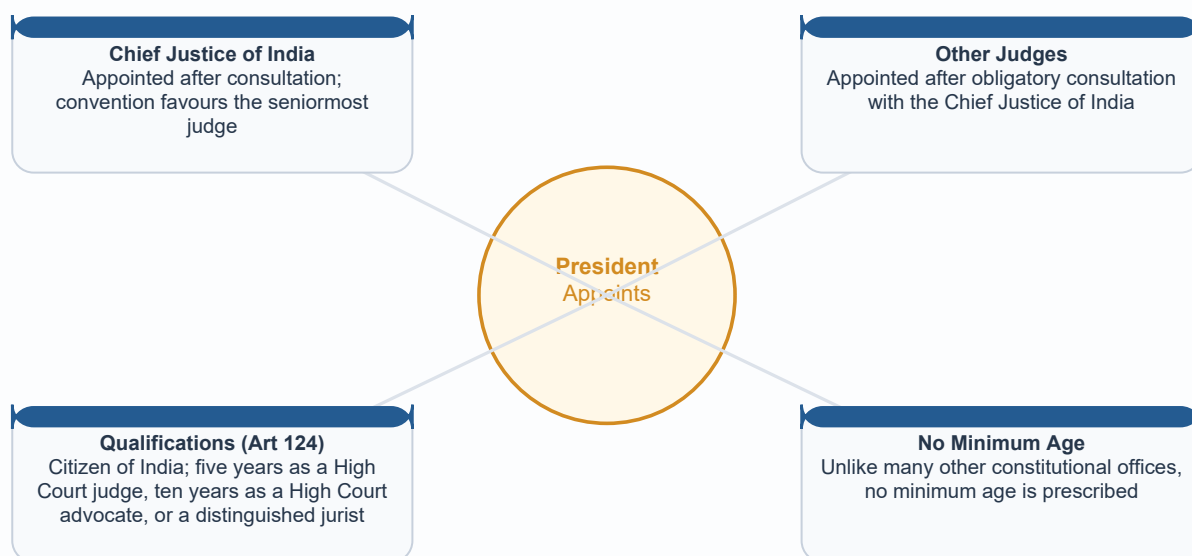
NEWS TRIGGER

Delays in notifying collegium recommendations remain a recurring flashpoint between the judiciary and the executive.

INTRO & ORIGIN

The Constitution's own text is sparse: the President appoints every judge, the Chief Justice of India after consultation, and other judges after consultation with the Chief Justice of India, which practice has since made obligatory.

WHO APPOINTS WHOM



KEY DATA

Qualification Route	Requirement
High Court judge	Five years as a judge of one or more High Courts
High Court advocate	Ten years as an advocate of one or more High Courts
Distinguished jurist	In the opinion of the President, though never yet used in practice

STATIC THEORY

- The bare constitutional text gives the executive a formal role, but decades of case law have transferred effective primacy to the judiciary through the collegium system.
- There is no minimum age requirement for a Supreme Court judge, unlike the fixed minimum ages for many other high constitutional offices.
- The convention of appointing the seniormost judge as Chief Justice of India was broken twice, in 1973 and 1977, through supersession.
- The "distinguished jurist" route to appointment exists in the constitutional text but has never actually been used.

MEMORY HOOK

PRESIDENT APPOINTS, but CJI CONSULTATION IS OBLIGATORY for every other judge

MUST-KNOW FACTS

1. A Supreme Court judge must be a citizen of India and meet one of three alternative qualification routes.
2. There is no minimum age prescribed for appointment as a Supreme Court judge.
3. The seniority convention for appointing the Chief Justice of India was broken in 1973 and 1977 through supersession.
4. The distinguished-jurist route to appointment has never been used, though it remains constitutionally available.

UPSC TRAPS

WRONG: A minimum age is prescribed for appointment as a Supreme Court judge.

CORRECT: No minimum age is prescribed; only the professional-experience routes apply.

WRONG: A distinguished jurist can never be appointed to the Supreme Court.

CORRECT: It is a constitutionally available route, though it has never actually been used.

MAINS ANGLE

Trace how the bare text of Article 124 evolved, through consultation becoming concurrence, into the present collegium system of judicial primacy in appointments.

STUDY LINK

Supreme Court -> Collegium System | Public Services -> Appointment Conventions

HIGH**3. The Collegium: Four Judges Cases**

GS-II Polity -
Judicial
Independence

NEWS TRIGGER

The 2025 GS-II Mains paper directly tested a critical comparison between India's collegium system and the United States' presidential-nomination model of judicial appointment.

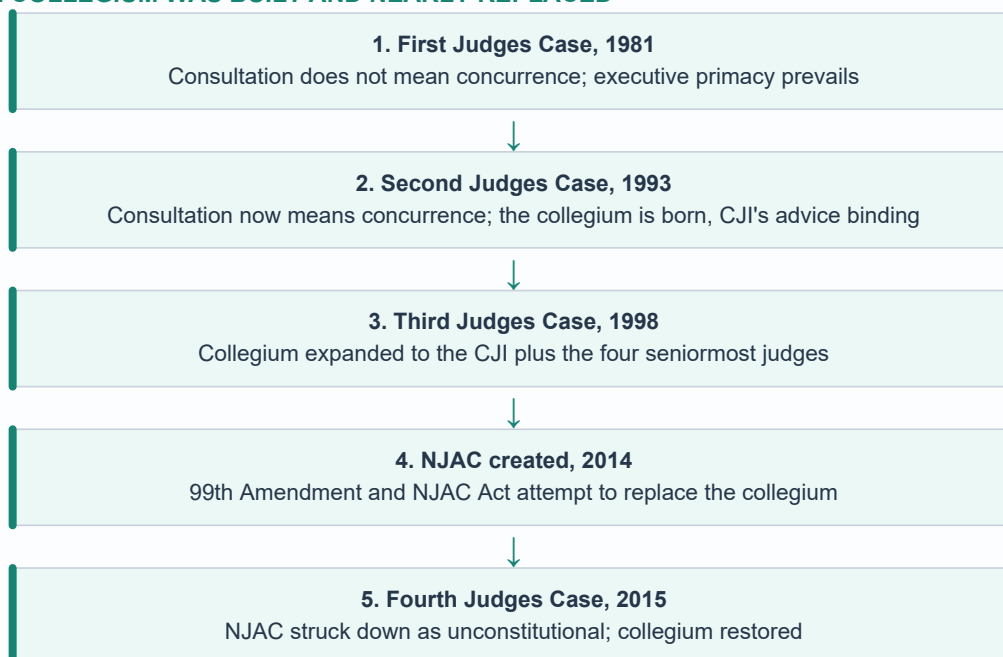
INTRO & ORIGIN

The collegium system was not created by any constitutional amendment; it was built entirely through four successive Supreme Court judgments that reinterpreted the meaning of "consultation" in Article 124.

KEY DATA

Case	Year	Held
First Judges Case	1981	Consultation does not mean concurrence; executive primacy
Second Judges Case	1993	Consultation means concurrence; collegium born; CJI's advice binding
Third Judges Case	1998	Collegium defined as CJI plus four seniormost Supreme Court judges
Fourth Judges Case (NJAC)	2015	99th Amendment and NJAC Act struck down as violating judicial independence

HOW THE COLLEGIUM WAS BUILT AND NEARLY REPLACED



STATIC THEORY

- The collegium is a judicial creation, not a constitutional or statutory body, which is why it can be described as an interpretive rather than textual institution.
- The Second Judges Case reversed the executive-primacy position of the First Judges Case by holding that consultation must mean concurrence.
- The Fourth Judges Case struck down the NJAC on the ground that executive and legislative participation in appointments threatened judicial independence, a part of the basic structure.
- The seniority convention for the Chief Justice of India, though not textually mandated, was reaffirmed as the norm following the Second Judges Case.

MEMORY HOOK

1981 EXECUTIVE | 1993 CONCURRENCE | 1998 CJI+4 | 2015 NJAC STRUCK DOWN

MUST-KNOW FACTS

1. The collegium system originates entirely from the Second and Third Judges cases, not from any constitutional text.
2. The NJAC was created by the 99th Constitutional Amendment and a separate NJAC Act in 2014.
3. The Fourth Judges Case of 2015 struck down the NJAC as unconstitutional, restoring the collegium.
4. The Third Judges Case fixed the collegium's composition as the Chief Justice of India plus the four seniormost judges.

UPSC TRAPS

WRONG: The collegium system is expressly created by the Constitution.

CORRECT: It is a judicial creation from the Second and Third Judges cases, not constitutional text.

WRONG: The NJAC is still in operation today.

CORRECT: It was struck down in the Fourth Judges Case, 2015, and the collegium was restored.

MAINS ANGLE

Trace the evolution of the collegium through the four Judges cases and use it to evaluate whether it should be reformed for greater transparency without compromising judicial independence.

STUDY LINK

Amendment and Basic Structure -> Judicial Independence | Supreme Court -> Appointment of Judges

HIGH

4. Qualifications, Tenure and Removal of Judges

GS-II Polity -
Judicial
Accountability

NEWS TRIGGER

That no Supreme Court judge has ever been removed, despite one impeachment motion reaching Parliament, is a striking fact about the resilience of judicial tenure protections.

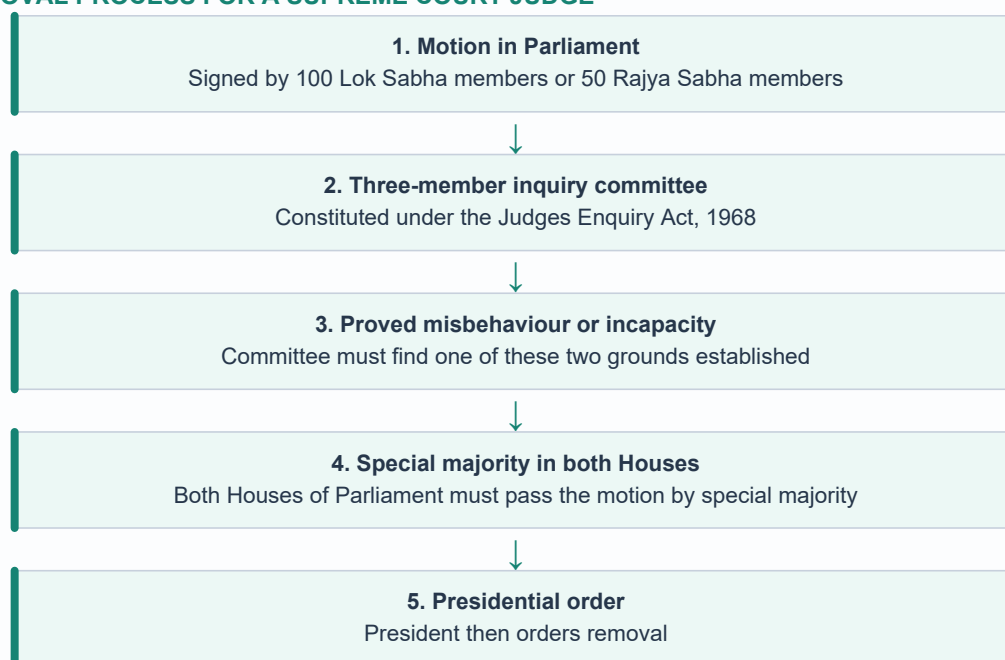
INTRO & ORIGIN

A judge holds office until sixty-five years of age and can be removed only through an elaborate impeachment-style process designed to insulate the judiciary from ordinary political pressure.

KEY DATA

Feature	Detail
Retirement age	65 years
Removal grounds	Proved misbehaviour or incapacity only
Removal process statute	Judges (Inquiry) Act, 1968
Precedent	V. Ramaswami (1991-93) faced a motion but survived; no judge has ever been removed
Salary protection	Charged on the Consolidated Fund; cannot be varied to disadvantage except during a financial emergency

THE REMOVAL PROCESS FOR A SUPREME COURT JUDGE



STATIC THEORY

- The high threshold of a special majority in both Houses, following a judicial inquiry finding misbehaviour or incapacity, is designed to make removal exceptionally difficult.
- V. Ramaswami's case in 1991-93 remains the only instance of a removal motion reaching an advanced stage; it failed when the ruling party abstained from voting.
- Charging judicial salaries on the Consolidated Fund removes them from annual parliamentary vote, protecting judicial independence financially as well as procedurally.
- No Supreme Court judge has ever actually been removed from office since the Constitution's commencement.

MEMORY HOOK

100 LS or 50 RS -> INQUIRY COMMITTEE -> SPECIAL MAJORITY -> PRESIDENT REMOVES; NEVER YET USED

MUST-KNOW FACTS

1. A Supreme Court judge holds office until the age of sixty-five.
2. Removal requires proved misbehaviour or incapacity, established through a three-member inquiry committee under the Judges Inquiry Act, 1968.
3. V. Ramaswami's removal motion in the early 1990s failed to secure the required votes.
4. No sitting or former Supreme Court judge has ever been removed through this process.

UPSC TRAPS

WRONG: A Supreme Court judge retires at sixty-two.

CORRECT: The retirement age for Supreme Court judges is sixty-five; High Court judges retire at sixty-two.

WRONG: A Supreme Court judge has previously been removed from office.

CORRECT: No judge has ever been removed; the closest case, V. Ramaswami, survived the vote.

MAINS ANGLE

Evaluate whether the extremely high threshold for judicial removal protects independence effectively, or whether it leaves accountability gaps for proven misconduct short of removal.

STUDY LINK

Supreme Court -> Collegium System |
Amendment and Basic Structure -> Judicial Independence

HIGH

5. Jurisdiction I: Original and Writ Jurisdiction

GS-II Polity -
Judicial Powers

NEWS TRIGGER

Confusion between the Supreme Court's writ jurisdiction under Article 32 and the High Courts' broader writ jurisdiction under Article 226 is one of the most common examiner traps.

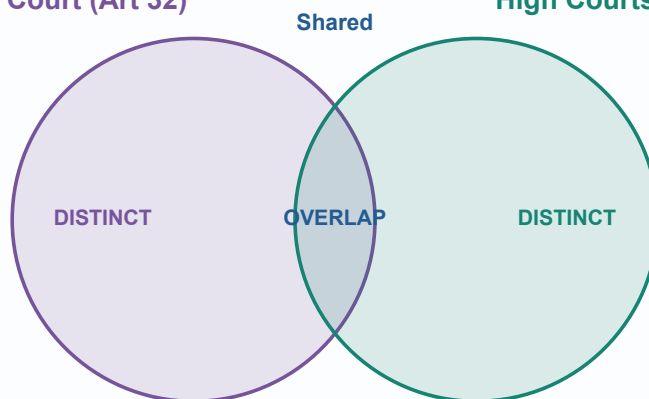
INTRO & ORIGIN

Original jurisdiction lets the Supreme Court alone resolve disputes between governments, while writ jurisdiction lets any citizen approach it directly to enforce Fundamental Rights.

WRIT JURISDICTION: ARTICLE 32 VERSUS ARTICLE 226

Supreme Court (Art 32)

High Courts (Art 226)



Supreme Court (Art 32)

- Only for enforcement of Fundamental Rights
- Itself a Fundamental Right

Shared

- Same five writs: habeas corpus, mandamus, prohibition, certiorari, quo warranto
- Concurrent jurisdiction over Fundamental Rights matters

High Courts (Art 226)

- Available for Fundamental Rights and other legal purposes
- Constitutionally the wider writ power

Article 226 is wider than Article 32 because it extends beyond Fundamental Rights to any other legal right.

KEY DATA

Jurisdiction	Scope
Original (exclusive)	Federal disputes: Centre versus one or more states, or state versus state
Excluded from original jurisdiction	Political questions, pre-Constitution treaties, inter-state water disputes, Finance Commission matters
Writ jurisdiction (Art 32)	Only for enforcement of Fundamental Rights; itself a Fundamental Right
Writ jurisdiction (Art 226, High Courts)	Fundamental Rights and any other legal purpose - constitutionally wider

STATIC THEORY

- Original jurisdiction is exclusive to the Supreme Court and deliberately excludes politically sensitive matters like inter-state water disputes, which go to specialised tribunals instead.
- Article 32 makes the right to move the Supreme Court for enforcement of Fundamental Rights itself a Fundamental Right, giving it special constitutional weight.
- Article 226 is wider than Article 32 precisely because it is not limited to Fundamental Rights alone.
- Both the Supreme Court and the High Courts exercise concurrent writ jurisdiction over Fundamental Rights matters, letting a petitioner choose the forum.

MEMORY HOOK

ARTICLE 32 = only Fundamental Rights | ARTICLE 226 = Fundamental Rights PLUS other legal rights

MUST-KNOW FACTS

1. Original jurisdiction excludes inter-state water disputes, which are handled by tribunals under Article 262.
2. Article 32 itself is treated as a Fundamental Right, not merely a procedural remedy.
3. The High Courts' writ jurisdiction under Article 226 is constitutionally wider than the Supreme Court's under Article 32.
4. Both courts issue the same five writs: habeas corpus, mandamus, prohibition, certiorari and quo warranto.

UPSC TRAPS

WRONG: The Supreme Court's writ jurisdiction is wider than that of the High Courts.

CORRECT: Article 226 gives High Courts a wider writ jurisdiction than Article 32 gives the Supreme Court.

WRONG: Original jurisdiction covers inter-state water disputes.

CORRECT: Such disputes are excluded from original jurisdiction and go to tribunals under Article 262.

MAINS ANGLE

Use the Article 32 versus Article 226 comparison to explain why access to constitutional remedies in India is deliberately layered across both the Supreme Court and High Courts.

STUDY LINK

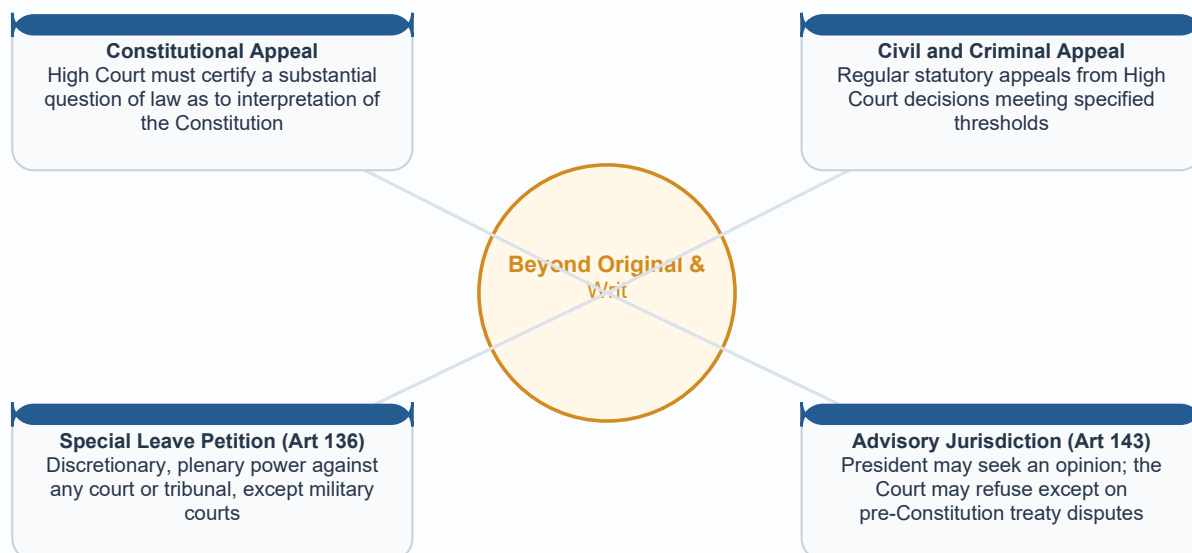
High Court -> Writ Jurisdiction | Fundamental Rights -> Article 32

HIGH**6. Jurisdiction II: Appellate, Advisory and Court of Record**GS-II Polity -
Judicial Powers**NEWS TRIGGER**

The Special Leave Petition route under Article 136 is invoked in an enormous share of the Supreme Court's total caseload, making its discretionary and plenary character an important nuance.

INTRO & ORIGIN

Beyond original and writ jurisdiction, the Supreme Court hears regular appeals, gives advisory opinions to the President, and functions as a court of record with the power to punish for contempt.

THE APPELLATE AND SPECIAL JURISDICTIONS

KEY DATA

Jurisdiction	Key Feature
Advisory (Article 143)	President may seek opinion; Court may refuse on grounds of public importance, but must advise on pre-Constitution treaty disputes; opinion is not binding
Court of Record (Article 129)	Its judgments are recorded as precedents; carries the power to punish for contempt of court
Special Leave Petition (Article 136)	Excludes only military courts and tribunals from its reach
Other powers	Decides Presidential and Vice-Presidential election disputes exclusively and finally; reviews its own judgments; transfers cases between High Courts

STATIC THEORY

- An advisory opinion under Article 143 is not binding on the Supreme Court itself or on other courts, even though it carries strong persuasive authority.
- The Supreme Court's power to review its own judgments allowed Kesavananda Bharati in 1973 to overrule the earlier Golak Nath judgment of 1967.
- Article 141 makes every declared law of the Supreme Court binding on all other courts within India, giving its rulings nationwide precedential force.
- The Special Leave Petition under Article 136 is deliberately drafted as a residual, discretionary power rather than a right of appeal, which is why it can reach almost any tribunal except military courts.

MEMORY HOOK

ADVISORY opinion is never binding | **ART 141** makes **SC** law binding on every other court

MUST-KNOW FACTS

1. An advisory opinion of the Supreme Court under Article 143 is not binding, even on the Court itself.
2. The Supreme Court must advise on disputes arising from pre-Constitution treaties, unlike other advisory references it may decline.
3. Special Leave Petitions under Article 136 cannot be filed against military courts or tribunals.
4. The Supreme Court decides Presidential and Vice-Presidential election disputes exclusively and its decision is final.

UPSC TRAPS

- WRONG:** An advisory opinion under Article 143 is binding on the Supreme Court.
- CORRECT:** It is not binding, though it carries persuasive authority.
- WRONG:** A Special Leave Petition can be filed against a military court order.
- CORRECT:** Military courts and tribunals are excluded from the reach of Article 136.

MAINS ANGLE

Discuss how the discretionary breadth of Article 136 and the binding force of Article 141 together make the Supreme Court the ultimate unifying authority over Indian law.

STUDY LINK

Supreme Court -> Judicial Review | High Court -> Appellate Jurisdiction

HIGH

7. Judicial Review: Basis, Grounds and the Ninth Schedule

GS-II Polity -
Constitutionalism

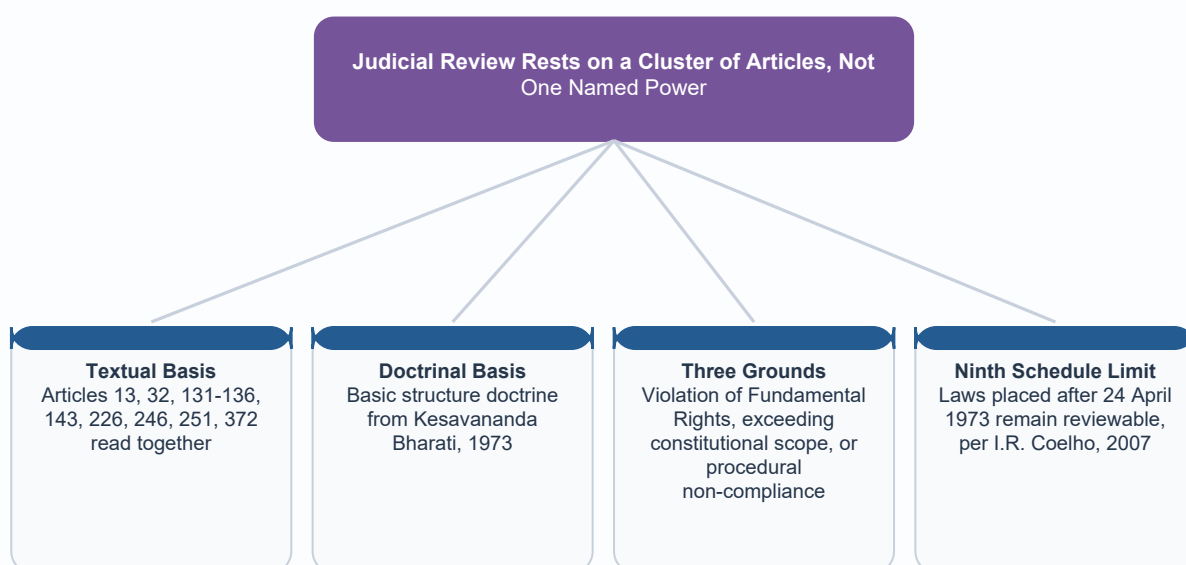
NEWS TRIGGER

Every reference to the basic structure doctrine as the guardian against constitutional overreach ultimately rests on the judicial review power discussed in this module.

INTRO & ORIGIN

Judicial review - the power to examine the constitutionality of legislative and executive action - is nowhere named as a single provision but flows from a cluster of articles read together.

THE CONSTITUTIONAL BASIS OF JUDICIAL REVIEW



STATIC THEORY

- Judicial review in India is textually diffuse - it is inferred from a combination of articles rather than stated in a single dedicated provision.
- The basic structure doctrine, established in Kesavananda Bharati (1973), supplies the deepest layer of judicial review, protecting the Constitution's core identity even from constitutional amendments.
- Three broad grounds justify striking down a law or executive act: violation of Fundamental Rights, exceeding the legislature's constitutional competence, and failure to follow required procedure.
- I.R. Coelho (2007) held that Ninth Schedule laws enacted after 24 April 1973, the date of the Kesavananda judgment, remain open to judicial review on basic-structure grounds.

MEMORY HOOK

NO SINGLE ARTICLE NAMES JUDICIAL REVIEW; 24 APRIL 1973 IS THE NINTH SCHEDULE CUT-OFF

MUST-KNOW FACTS

1. Judicial review flows from a cluster of articles including 13, 32, 131-136, 143, 226, 246, 251 and 372.
2. The basic structure doctrine originates in the Kesavananda Bharati judgment of 1973.
3. I.R. Coelho (2007) held that post-24 April 1973 Ninth Schedule laws remain judicially reviewable.
4. The three recognised grounds for judicial review are Fundamental Rights violation, exceeding constitutional scope, and procedural non-compliance.

UPSC TRAPS

WRONG: A single article of the Constitution explicitly creates judicial review.

CORRECT: It is inferred from a cluster of articles read together, not from any single named provision.

WRONG: All Ninth Schedule laws are permanently immune from judicial review.

CORRECT: Laws placed in the Ninth Schedule after 24 April 1973 remain reviewable under I.R. Coelho, 2007.

MAINS ANGLE

Explain how judicial review, though textually diffuse, becomes doctrinally concentrated through the basic structure principle as the ultimate check on parliamentary power.

STUDY LINK

Amendment and Basic Structure ->
Kesavananda Bharati | Supreme Court ->
Court of Record

HIGH**8. Judicial Activism versus Judicial Restraint**

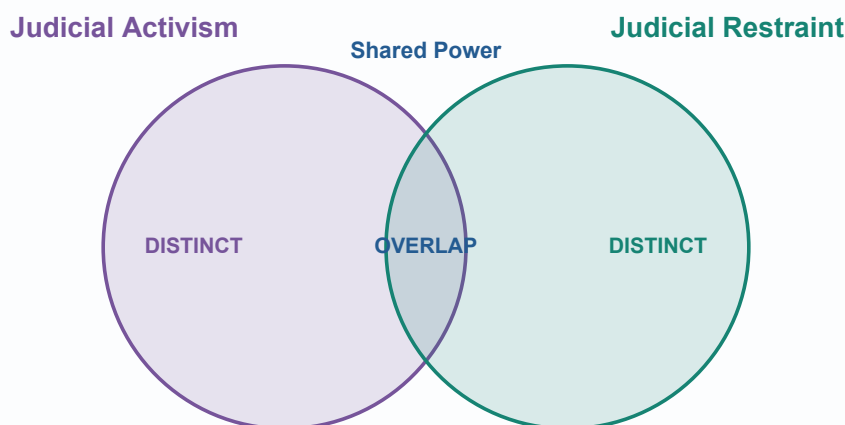
GS-II Polity -
Judiciary and
Governance

NEWS TRIGGER

Charges of "government by judiciary" resurface whenever the Court issues policy-shaping directions in areas like environment, education or electoral reform.

INTRO & ORIGIN

Judicial activism describes courts going beyond review to effectively make policy or law, justified by legislative-executive failure, hung legislatures or the need to protect citizens' rights; judicial restraint counsels deference to the elected branches instead.

ACTIVISM AND RESTRAINT AS COMPETING JUDICIAL POSTURES**Judicial Activism**

- Expanded locus standi enables PIL
- Justified by legislative-executive failure or a legislative vacuum
- Criticised as "government by judiciary"

Shared Power

- Both flow from the same judicial review power
- Both claim fidelity to constitutional values

Judicial Restraint

- Defers to the elected legislature and executive
- Rooted in separation of powers
- Criticised as abdication when rights are at stake

The same judicial review power can be exercised expansively as activism or cautiously as restraint, depending on the Court's chosen posture.

STATIC THEORY

- Judicial activism as a term originated in the mid-twentieth century United States and entered Indian practice mainly through expanded locus standi and Public Interest Litigation.
- Justifications commonly cited for activism include legislative-executive failure, hung legislatures, and the need to protect citizens' rights where ordinary political processes have stalled.
- Judicial restraint is grounded in separation of powers, holding that policy choices belong to elected branches accountable to the electorate.
- Critics of activism describe it as judicial overreach or "government by judiciary", while critics of restraint describe it as abdication of the Court's constitutional duty.

MEMORY HOOK

ACTIVISM = fills a vacuum | RESTRAINT = respects separation of powers

MUST-KNOW FACTS

1. The term judicial activism originated in the United States in the mid-twentieth century.
2. In India, activism grew mainly through expanded locus standi and Public Interest Litigation from the early 1980s.
3. Legislative-executive failure and legislative vacuum are the principal justifications offered for judicial activism.
4. Judicial restraint is grounded in the constitutional principle of separation of powers.

UPSC TRAPS

WRONG: Judicial activism and judicial review are the same thing.

CORRECT: Judicial review is the underlying power; activism is one expansive way of exercising it, distinct from restrained exercise.

WRONG: Judicial restraint means the Court never enforces Fundamental Rights.

CORRECT: Restraint means deference to elected branches on policy choices, not abdication of rights enforcement.

MAINS ANGLE

Critically evaluate where the line between legitimate judicial activism and judicial overreach should be drawn, keeping separation of powers in view.

STUDY LINK

Fundamental Rights -> Enforcement |
Supreme Court -> Public Interest Litigation

HIGH

9. Public Interest Litigation: Origins and Impact

GS-II Polity -
Access to Justice

NEWS TRIGGER

The verified 2024 GS-II Mains question on the growth of PIL and whether it has made the Indian judiciary the world's most powerful directly tests this module's content.

INTRO & ORIGIN

Public Interest Litigation relaxed the traditional requirement that only a directly affected party could approach a court, letting any public-spirited person move the Supreme Court on behalf of the disadvantaged.

KEY DATA

Aspect	Detail
Alternative names	Social Action Litigation, Social Interest Litigation, Class Action Litigation
Pioneering judges	Justice V.R. Krishna Iyer and Justice P.N. Bhagwati
Core innovation	Relaxation of locus standi to allow public-spirited petitioners
Stated aims	Rule of law, access to justice, realisation of Fundamental Rights
Recognised downside	Frivolous or "publicity-interest" litigation and consequent judicial overload

HOW PIL TRANSFORMED ACCESS TO JUSTICE**STATIC THEORY**

- PIL is also known by other names such as Social Action Litigation and Class Action Litigation, all pointing to the same relaxed-standing innovation.
- By allowing any public-spirited person to petition on behalf of those unable to approach the Court themselves, PIL extended constitutional remedies to marginalised groups.
- The growth of PIL is central to debates on whether the Indian judiciary has become excessively powerful relative to the legislature and executive.
- Judicial overload from frivolous PIL petitions is the most cited structural criticism of the innovation.

MEMORY HOOK

KRISHNA IYER + BHAGWATI (early 1980s) = relaxed LOCUS STANDI = PIL

MUST-KNOW FACTS

1. Public Interest Litigation originated in the United States in the 1960s and was introduced in India in the early 1980s.
2. Justices V.R. Krishna Iyer and P.N. Bhagwati are credited as its pioneers in India.
3. The defining innovation of PIL is the relaxation of locus standi.
4. Frivolous or publicity-driven petitions are the most commonly cited downside of PIL.

UPSC TRAPS

WRONG: PIL requires the petitioner to be personally and directly affected.

CORRECT: PIL's defining feature is relaxed locus standi, allowing any public-spirited person to petition.

WRONG: PIL originated in India before being adopted elsewhere.

CORRECT: It originated in the United States in the 1960s and was introduced in India in the early 1980s.

MAINS ANGLE

Explain the reasons for the growth of PIL in India and evaluate whether it has made the Supreme Court the world's most powerful judiciary while remaining constitutionally bounded.

STUDY LINK

Supreme Court -> Judicial Activism |
Fundamental Rights -> Access to Justice

HIGH**10. Comparative Frameworks: SC versus HC, India versus USA**

GS-II Mains
Polity -
Comparative
Constitutionalism

NEWS TRIGGER

A verified 2025 GS-II Mains question directly asked candidates to compare India's collegium system with the United States' judicial appointment process, rewarding exactly this comparative framework.

INTRO & ORIGIN

Comparative questions on the judiciary usually turn on two axes: how Indian writ jurisdiction is distributed between the Supreme Court and High Courts, and how India's judicial appointment process compares with a presidential-nomination model like that of the United States.

WHAT A COMPARATIVE ANSWER MUST COVER**India vs USA Judicial Appointment**

Independence India insulates appointments from direct political votes; the USA subjects them to Senate confirmation	Transparency India's collegium is criticised for opacity; the USA's confirmation process is public but highly politicised
Accountability Neither model has found an ideal balance between independence and accountability	Reform Direction Seek accountable independence rather than executive primacy or unchecked judicial self-selection

KEY DATA

Dimension	India (Supreme Court / High Court)	United States
Writ jurisdiction reach	Article 32 (SC, FRs only) narrower than Article 226 (HC, FRs plus other rights)	No equivalent dual writ-jurisdiction structure
Appointment mechanism	Collegium of the Chief Justice of India plus four seniormost judges	Presidential nomination followed by Senate confirmation
Political branch role	Formally the President appoints; in practice the collegium has primacy	Executive nomination and legislative confirmation are both substantive, political stages
Core criticism	Opacity and lack of a fixed, published appointment procedure	Politicisation of confirmation hearings along partisan lines

STATIC THEORY

- India's collegium system prioritises judicial independence from the political branches but is criticised for lacking transparency and a fixed published procedure.
- The United States' presidential-nomination and Senate-confirmation model is transparent and public but has become intensely partisan and politicised in recent decades.
- A well-rounded comparative answer avoids favouring either model wholesale, instead proposing accountable independence: transparent criteria and reasoned disclosure without surrendering appointments to direct political votes.
- The same comparative habit applies to writ jurisdiction: recognising that Article 226 is wider than Article 32 is essential before any answer on access to constitutional remedies.

MEMORY HOOK

INDIA: independence over transparency | USA: transparency over independence

MUST-KNOW FACTS

1. The verified 2025 GS-II Mains question (15 marks, 250 words) asked for a critical comparison of the Indian collegium and United States judicial-appointment systems.
2. India's collegium favours independence from political branches; the United States' confirmation process favours public, political scrutiny.
3. A balanced answer proposes accountable independence rather than a wholesale shift toward either extreme.
4. Article 226 remains constitutionally wider than Article 32 in any Indian-specific comparative writ-jurisdiction answer.

UPSC TRAPS

- WRONG:** The United States model has no political involvement in judicial appointments.
- CORRECT:** It involves both presidential nomination and Senate confirmation, both explicitly political stages.
- WRONG:** India's collegium system is a constitutional replica of the American model.
- CORRECT:** It is a judicially created domestic institution with no textual or comparative constitutional basis in the American system.

MAINS ANGLE

Critically examine the collegium system's advantages and disadvantages against the American presidential-nomination and Senate-confirmation model, and recommend an accountable-independence reform path.

STUDY LINK

Supreme Court -> Collegium System | High Court -> Writ Jurisdiction

HIGH

11. Landmark Judgments: A Case-Law Timeline

GS-II Polity -
Case Law

NEWS TRIGGER

Every major current controversy on judicial appointments, review powers or federal disputes ultimately traces back to one of the landmark cases assembled in this timeline.

INTRO & ORIGIN

Placing the Supreme Court's own landmark judgments on a single timeline shows how doctrines built on each other: an early expansive interpretation is refined, sometimes overruled, and eventually stabilised into settled law.

TIMELINE

1967 — Golak Nath holds Parliament cannot amend Fundamental Rights; later overruled.

1973 — Kesavananda Bharati establishes the basic structure doctrine, overruling Golak Nath.

1981 — First Judges Case holds consultation does not mean concurrence.

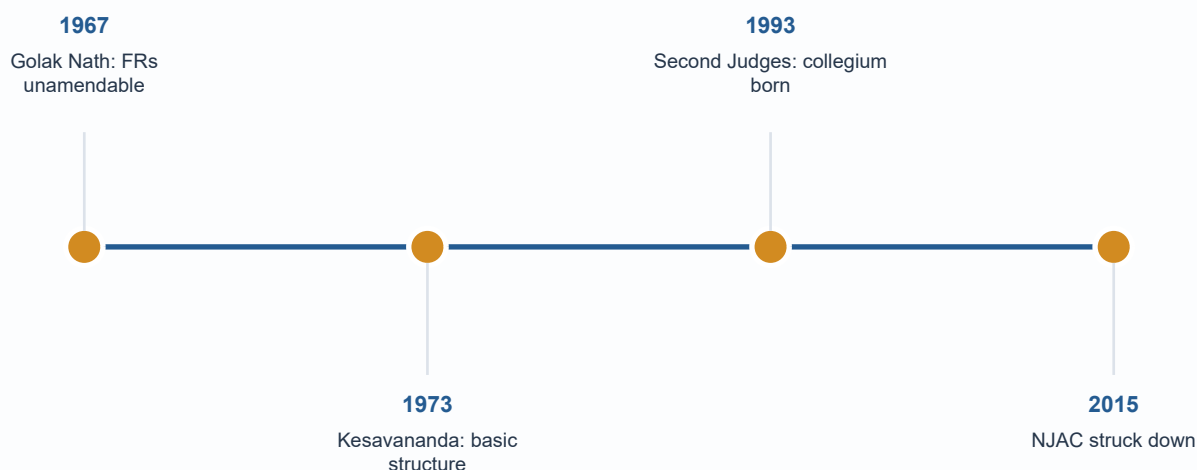
1993 — Second Judges Case reverses this, holding consultation means concurrence; collegium born.

1998 — Third Judges Case fixes the collegium as the CJI plus four seniormost judges.

2007 — I.R. Coelho holds post-1973 Ninth Schedule laws remain reviewable.

2015 — Fourth Judges Case strikes down the NJAC, restoring the collegium.

DOCTRINE BUILDING ACROSS SEVEN LANDMARK JUDGMENTS



STATIC THEORY

- Golak Nath's 1967 holding that Fundamental Rights could not be amended at all was a maximalist position that Kesavananda Bharati replaced with the more workable basic structure doctrine.
- The reversal from the First Judges Case to the Second Judges Case shows the Supreme Court itself changing its own constitutional interpretation of consultation within twelve years.
- I.R. Coelho's 2007 ruling extended basic-structure review even to laws Parliament had tried to insulate through the Ninth Schedule, provided they were enacted after 24 April 1973.
- The self-correcting power of the Supreme Court - reviewing and even overruling its own earlier judgments - runs through every case in this timeline.

MEMORY HOOK

1967 MAXIMALIST -> 1973 BASIC STRUCTURE -> 1993 COLLEGIUM -> 2007 NINTH SCHEDULE -> 2015 NJAC STRUCK DOWN

MUST-KNOW FACTS

1. Golak Nath (1967) held that Fundamental Rights could not be amended at all; this was overruled by Kesavananda Bharati (1973).
2. Kesavananda Bharati (1973) established the basic structure doctrine that still limits Parliament's amending power.
3. I.R. Coelho (2007) confirmed judicial review applies to Ninth Schedule laws enacted after 24 April 1973.
4. The Fourth Judges Case (2015) struck down the NJAC, restoring the collegium system.

UPSC TRAPS

WRONG: Golak Nath and Kesavananda Bharati reached the same conclusion on amending Fundamental Rights.

CORRECT: Kesavananda Bharati overruled Golak Nath, replacing an absolute bar with the basic structure doctrine.

WRONG: The Supreme Court cannot review or change its own earlier judgments.

CORRECT: It regularly does so, as shown by Kesavananda overruling Golak Nath and the Second Judges Case reversing the First.

MAINS ANGLE

Use this case-law timeline to demonstrate the Supreme Court's evolving, self-correcting jurisprudence as a defining feature of Indian constitutionalism.

STUDY LINK

Amendment and Basic Structure -> Kesavananda Bharati | Supreme Court -> The Collegium

HIGH

12. UPSC Answer-Writing Framework: Judiciary, Reform and Accountability

GS-II Mains
Polity - Answer
Writing

NEWS TRIGGER

Recurring themes - collegium transparency, case pendency of roughly five crore matters, and Supreme Court rulings on Governors' delay in assenting to bills - all converge on one accountability question: how should judicial power be checked without weakening its independence.

INTRO & ORIGIN

A high-scoring answer on the judiciary identifies the specific doctrine or institution at stake, explains its constitutional basis, links it to the current controversy, and proposes a reform that protects independence while adding accountability.

KEY DATA

Question Theme	Core Argument	Key Illustration
Collegium reform	Independence must be preserved while transparency is improved	First to Fourth Judges cases, NJAC verdict
Activism versus overreach	Judicial review can slide into policy-making without careful self-restraint	PIL growth, separation of powers
PIL as boon or bane	Democratised access to justice, but risks judicial overload from frivolous petitions	Krishna Iyer and Bhagwati's innovation
Judicial review as guardian	Basic structure doctrine remains the ultimate check on parliamentary power	Kesavananda Bharati, I.R. Coelho

THE FOUR-STEP METHOD FOR JUDICIARY QUESTIONS**STATIC THEORY**

- Constitutional morality as a value - balancing independence with accountability - is the framing device the examiner used in the verified 2025 GS-II question on high functionaries.
- Case pendency of roughly five crore matters across all courts is the most cited structural crisis motivating judicial reform discussions.
- Supreme Court rulings on Governors' delay in assenting to bills under Article 200 connect judicial review directly to federalism, bridging this module to Governor-related content.
- A complete answer never treats independence and accountability as opposites; it treats them as jointly necessary conditions for public confidence in the judiciary.

MEMORY HOOK

IDENTIFY doctrine -> CITE basis -> LINK controversy -> PROPOSE accountable independence

MUST-KNOW FACTS

1. The verified 2024 GS-II question (15 marks, 250 words) asked about the growth of PIL and whether the Supreme Court has become the world's most powerful judiciary.
2. The verified 2025 GS-II question (15 marks, 250 words) asked how constitutional morality checks high functionaries, applicable to judicial independence and accountability.
3. A separate verified 2025 GS-II question (15 marks, 250 words) asked for a critical comparison of the collegium with the United States' appointment system.
4. Case pendency of approximately five crore matters is the standard cited statistic for judicial reform urgency.

UPSC TRAPS

WRONG: Judicial independence and judicial accountability are mutually exclusive goals.

CORRECT: A well-designed answer treats them as jointly necessary, proposing accountable independence rather than a trade-off.

WRONG: Every judiciary question can be answered with the same generic description of Articles 124-147.

CORRECT: Each question requires identifying the specific doctrine at stake and connecting it to the named controversy.

MAINS ANGLE

Model thesis: judicial independence in India is constitutionally secure, but its long-term legitimacy depends on matching that independence with transparent, accountable processes of appointment, review and self-restraint.

STUDY LINK

Supreme Court -> Collegium and Judicial Review | Governor-CM-State-Council -> Article 200 Assent Rulings

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